

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 11, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV01486

DEWAR v. GOGH DELIVERY, LLC

**(UNOPPOSED) MOTION FOR FINAL APPROVAL OF CLASS ACTION AND
PAGA SETTLEMENT**

Based on the pleadings submitted, the settlement is entitled to a presumption of fairness and no evidence having been presented to overcome the presumption, the motion for final approval is granted. Plaintiff shall submit a proposed order and judgment, and the court will set a non-appearance hearing date to confirm the distribution.

No. 23CV02604

SANDEN v. SANDEN

**(UNOPPOSED) PLAINTIFF’S MOTION FOR SUMMARY ADJUDICATION
FOR PARTITION OF REAL PROPERTY**

The unopposed motion is granted. An interlocutory judgment for partition for sale of the subject property (711 Hester Creek Road, Los Gatos, California, Santa Cruz County APN 097-231-50) will be entered, and the Court appoints Brandon J. Anand, Esq. as partition referee. Plaintiff shall submit forms of order and judgment for the Court’s signature.

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Plaintiff Chad Sanden seeks the partition of the subject property. He owns the property along with his father, John Sanden and John's wife, Cathy Johnson. Chad and John each own an undivided 50% as tenants in common and John's wife has a community property interest in one half.

John and Cathy live on the property. The complaint contains a long history of Chad and his deceased wife Justine bailing John and Cathy out of many financial hardships, which culminated in an agreement (memorialized in a December 28, 2017 deed) that Chad and John would own the property as joint tenants as their separate property; both wives executed spousal consents to joint tenancy specifically to relinquish their interests in the property. This agreement was made to ensure that Chad would be reimbursed for his many years of financial support and property upgrades at John's death. Chad estimates he has spent over \$450,000.00 since 2012 on encumbrances and upgrades to the property.

Without Chad's knowledge or consent, John quitclaimed his portion to the trust he has with Cathy on June 16, 2023. This resulted in a severance of the bargained for agreement with Chad and a tenancy in common, rather than a joint tenancy. Plaintiff attempted to communicate and work with defendants to resolve the dispute, specifically to record a rescission deed to rescind the June 2023 deed, to no avail.

The Court finds plaintiff has met his burden of production to establish that no triable issue of fact exists regarding his individual right to partition and he is entitled to an interlocutory judgment partitioning the property. Despite proper service on defendants, no opposition was filed. Therefore, the Court grants the motion for summary adjudication.

No. 24CV00702

TURNER v. SANTA CRUZ METRO, et al.

PLAINTIFF'S MOTION TO QUASH SUBPOENAS FOR MEDICAL RECORDS

The motion is granted. Each of the 15 subpoenas to plaintiff's medical providers are quashed. The parties are directed to continue to meet and confer to craft requests that are limited to the period of five years prior to the accident to the present and are directly related to plaintiff's claimed injuries.

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I. BACKGROUND

Plaintiff Tyler Turner sued defendants Santa Cruz Metropolitan Transit District and its employee Riley Smith for damages related to an auto collision on March 26, 2023, caused by Smith.

Plaintiff seeks a court order to quash or modify 15 subpoenas issued by defendants for records relating to plaintiff's medical care and history. Plaintiff takes issue with the subpoenas' overly broad scope, arguing they seek records protected by plaintiff's right to privacy. Plaintiff's counsel offered to limit the records to eight years of medical history, not the 13 years sought by defendants, and sought a limitation by affected body part and injury.

II. DISCUSSION

Pursuant to Code of Civil Procedure section 2017.010 unless otherwise limited by a court order, any party may obtain discovery regarding any matter not privileged that is relevant to the subject matter involved if the matter is admissible or is reasonably calculated to lead to the discovery of admissible evidence. "The 'relevancy to the subject matter' and 'reasonably calculated to lead to discovery of admissible evidence' standards are applied liberally. Any doubt is generally resolved in favor of permitting discovery, particularly where the precise issues in the case are not yet clearly established. [Citations.]" (Weil & Brown *Civil Proc. Before Trial* (TRG 2025) § 8:71.)

The right to privacy is not absolute and in each case the court must balance the right to privacy against the need for discovery. Defendant is entitled to records related to plaintiff's claims for bodily injury, but not for all records without regard to time or body part. These subpoenas exceed any reasonable time nexus to the collision (seeking records for the past 16 years) and fail to identify and limit the production to relevant body parts and injuries sustained by plaintiff. Further, despite plaintiff's counsel's efforts to narrow the subpoenas' scope, defense counsel repeatedly asserted that defendants could not meaningfully participate in any mediation without the medical records, yet simultaneously stalled the meet and confer process for months. (Miles Declaration, ¶¶ 4-8.)

Defendants maintain that plaintiff's discovery responses referred to the medical records instead of itemizing injuries and damages, and that each of these providers were listed as treaters. However, the Court finds these requests to be overly broad as to time and subject; the requests should be narrowed to the time period indicated above and plaintiff's stated injuries/affected body parts.

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Plaintiff's request for sanctions is denied. Although there are differing accounts of the meet and confer process to date, the Court finds that there have been sufficient efforts to find that there's a good faith disagreement.

If further meeting and conferring is unavailing, the Court will not willingly entertain another discovery motion unless and until the parties request a guided discovery conference with the Court, akin to the previous statutory informal discovery conferences. Counsel can submit a request to set, on a local court form, accompanied by a declaration or stipulation.